Artificial Intelligence and the Right to Equality under the Indian Constitution

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Abstract

The Constitution of India places the principle of equality at the centre of public administration. Articles 14 and 15 require that every action of the State must be fair, non-arbitrary, and free from discrimination.[1] In recent years, the functioning of government institutions has increasingly involved the use of artificial intelligence and data-based decision-making systems. Such technological methods are now being considered in areas like welfare distribution, public employment, surveillance, and administrative evaluation. When decisions affecting citizens are influenced by automated processes, the question arises whether these methods are consistent with the constitutional guarantee of equality.

Unlike traditional decision-making, algorithm-based systems operate through pre-existing data and programmed instructions. If the data used in such systems reflects social imbalance, the results produced may also create unequal consequences. In India, where social and economic differences are often connected with caste, gender, religion, region, and access to resources, the possibility of indirect discrimination becomes a serious concern when technology is used by public authorities.

For this reason, the legality of artificial intelligence in governance must be examined within the framework of constitutional limitations. The State cannot avoid its responsibility by relying on automated systems, because every form of public power remains subject to the discipline of Articles 14 and 15. The use of technology must therefore be accompanied by safeguards such as fairness in design, scope for review, and accountability for wrongful outcomes. Only when such conditions are ensured can technological development remain compatible with the constitutional vision of equality.

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[1] INDIA CONST. arts. 14, 15.

Introduction

Artificial Intelligence is no longer only a private-sector tool in India. It is increasingly being planned and supported as public infrastructure. Recent national initiatives show this shift clearly. For example, the IndiaAI Mission has been approved with a budget outlay of ₹10,371.92 crore over five years,[2] and the public narrative around AI now emphasises large-scale computing capacity, datasets, skilling, and "Safe and Trusted AI" governance.

This indicates that the State is not merely "allowing" AI to grow; it is actively building an ecosystem in which AI systems may influence how services are delivered and how administrative choices are made.

However, when decision-making becomes technology-assisted, constitutional concerns become unavoidable. The Indian Constitution does not judge governance only by its speed or convenience. It requires fairness, accountability, and equal treatment. If automated tools are used in areas such as welfare eligibility, public employment, surveillance, or policing, the risk is not only of technical error but also of unequal impact on different groups. In a society marked by caste-based disadvantage, gender inequality, and unequal access to digital resources, even a seemingly neutral system may create outcomes that burden certain communities more than others.

This paper examines AI-driven governance through the Right to Equality, focusing on Articles 14 and 15. It asks a practical constitutional question: when the State relies on algorithmic outputs, how do we ensure that public power remains non-arbitrary, non-discriminatory, and consistent with the equality promise of the Constitution?

Understanding the Right to Equality under Articles 14 and 15

The right to equality is fundamental within India's constitutional framework, reflecting the Constitution's dedication to ensuring that State power is exercised in a fair, reasonable manner

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[2] Ministry of Electronics and Information Technology, Government of India, IndiaAI Mission (2024), NITI Aayog, National Strategy for Artificial Intelligence (2018). doc20251012664501.pdf

devoid of arbitrary discrimination. Articles 14 and 15 establish the basis for this principle by mandating equal treatment of individuals by the State while prohibiting unjust distinctions based on specified grounds.

Article 14: Equality before Law and Equal Protection of Laws

Article 14 states that no individual shall be denied equality before the law or equal protection under the laws within India's territory.[3] The phrase "equality before law" embodies the rule of law, affirming that all individuals are subject to legal authority without exception. Meanwhile, "equal protection of the laws" creates an obligation for the State to treat individuals in similar circumstances equally and to refrain from unreasonable or arbitrary classifications.

Judicial interpretations have broadened Article 14's scope beyond mere formal equality. In *E.P. Royappa v. State of Tamil Nadu*,[4] the Supreme Court determined that arbitrariness contradicts the essence of equality. This shift moved away from a restrictive classification test towards a wider requirement for fairness in public power application. The Court's stance was further reinforced in *Maneka Gandhi v. Union of India*,[5] where it underscored that any State action impacting rights must be just, fair, and reasonable. Thus, Article 14 serves not only as a safeguard against discrimination but also as a constitutional restraint on arbitrary governance.

While traditional tests for reasonable classification remain applicable, they must fulfill two criteria: (i) there must be an intelligible differentia underpinning the classification, and (ii) this differentia must bear a rational connection to the intended objective. Any distinction deemed irrational, excessive, or irrelevant to legislative aims may be declared unconstitutional.

With regard to emerging technologies like artificial intelligence, these principles gain importance since automated decision-making employed by public authorities must adhere to standards of

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[3] INDIA CONST. art. 14.

[4] E.P. Royappa v. State of Tamil Nadu, (1974) 4 SCC 3.

[5] Maneka Gandhi v. Union of India, (1978) 1 SCC 248.

fairness and non-arbitrariness. If algorithmic processes yield obscure or unjust outcomes, constitutional scrutiny under Article 14 becomes pertinent.

Article 15: Prohibition of Discrimination

Article 15 complements Article 14 by offering specific protections against discrimination on identified grounds. Article 15(1) forbids discrimination by the State against any citizen based on religion, race, caste, sex, or place of birth.[6] This provision acknowledges historical patterns of exclusion while limiting State actions that perpetuate such inequalities.

Simultaneously, the Constitution allows affirmative action through Articles 15(3) and 15(4), enabling special provisions for women and children as well as for socially and educationally disadvantaged groups including Scheduled Castes and Scheduled Tribes. These provisions reflect a commitment to substantive equality which recognizes that identical treatment may not yield equitable results when disadvantages are systemic.

In an era characterized by automated governance, Article 15 remains significant even when discrimination is not overtly apparent. Automated systems might avoid explicit references to caste or gender but could still use proxies such as location or educational background—factors that indirectly correlate with protected characteristics—resulting in unequal impacts linked to those characteristics.

Equality in the Context of Technological Governance

Articles 14 and 15 collectively provide a robust framework for equality. They restrict arbitrary actions by the State, prohibit discrimination, and promote substantive justice. As reliance on automated systems increases within governance structures, adherence to constitutional principles becomes essential in guiding technological implementation. Outcomes undermining fairness or equal treatment cannot be justified merely on grounds of efficiency or administrative convenience; thus understanding this framework is crucial prior to exploring how artificial intelligence influences governance from a constitutional perspective.

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[6] INDIA CONST. art. 15(1).

The Effects of Artificial Intelligence on the Right to Equality

The growing use of artificial intelligence in administrative and regulatory decision-making has introduced new methods through which public authorities perform their functions. In many situations, authorities rely on automated systems to analyse large volumes of data and to draw conclusions based on previously identified patterns. Although such methods are often presented as efficient and objective, their use raises important constitutional concerns when the outcomes affect the rights, opportunities, or legal status of individuals.

Unlike traditional administrative decision-making, algorithm-based systems operate on the basis of historical data and programmed rules. Because of this, the results produced by such systems may reflect the same social conditions that existed when the data was collected. If the data contains imbalance or inequality, the automated outcome may also produce unequal consequences. In a country like India, where differences relating to caste, gender, religion, economic status, and regional development continue to exist, reliance on automated decision-making may create a risk of unfair treatment even where there is no deliberate intention to discriminate.

One of the major concerns in this context is the possibility of algorithmic bias. Artificial intelligence does not independently understand fairness or justice; it simply identifies patterns in the information provided to it. When past data reflects unequal social practices, the system may treat those patterns as normal and repeat them in future decisions. This may result in certain communities being placed at a disadvantage in areas such as recruitment, policing, credit assessment, or welfare eligibility. Such outcomes may conflict with the constitutional requirement that State action must not be arbitrary or unreasonable under Articles 14 and 15 of the Constitution.

A well-known illustration of this problem can be seen in the use of automated recruitment systems. A major technology company, Amazon, developed an artificial intelligence tool to screen job applications; however, the system was later found to exhibit bias against female candidates because it had been trained on historical hiring data reflecting a predominantly male

workforce.[7] As a result, applications associated with women were ranked lower, even though the program was not intentionally designed to discriminate. This example demonstrates how algorithmic decision-making may replicate existing social patterns when the underlying data itself is imbalanced. If similar technology were to be adopted in public employment or government recruitment, the risk of indirect discrimination could arise, raising serious concerns under the constitutional guarantee of equality.

Another difficulty arises from the use of indirect indicators in automated decision-making. Even when a system does not directly consider factors such as caste or religion, it may rely on variables like place of residence, educational background, language, or income level. These factors may indirectly correspond to social identity, and therefore a decision that appears neutral in form may still produce unequal impact in practice. The constitutional guarantee of equality is concerned not only with intention but also with the actual effect of State action, and for this reason automated decisions must be examined carefully.

A similar concern has been observed in the context of digital mapping technologies. In Japan, controversy arose when historical maps showing the locations of Burakumin communities were made available through online mapping services.[8] Although the information was published for historical purposes, there were fears that such data could be used to identify individuals belonging to historically marginalized groups, leading to discrimination in areas such as employment and marriage. This incident illustrates that technological systems may appear neutral, yet the data they contain can reproduce existing social hierarchies. When information relating to social identity becomes easily accessible through digital tools, the risk of unequal treatment increases even without explicit intention to discriminate.

The risk becomes more serious when artificial intelligence is used in public employment, financial services, or law-enforcement activities. Automated screening of applications, predictive policing tools, or digital verification systems may operate without adequate transparency. Individuals affected by these decisions may not know how the result was reached, making it difficult to

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[7] Jeffrey Dastin, Amazon scraps secret AI recruiting tool, Reuters (2018).Insight - Amazon scraps secret AI recruiting tool that showed bias against women | Reuters

[8] Old Japanese maps on Google Earth unveil Burakumin secrets, Japan Today (2009).Old Japanese maps on Google Earth unveil 'burakumin' secrets - Japan Today

challenge an incorrect or unfair outcome. Lack of explanation and absence of human review may weaken the protection against arbitrary action that Articles 14 and 15 seek to provide.

In the Indian context, existing social inequalities make these concerns more significant. Differences in access to education, technology, and financial resources may influence the data on which automated systems rely. If such systems are used without proper safeguards, they may unintentionally strengthen the same disadvantages that the Constitution aims to reduce. For this reason, the use of artificial intelligence by the State cannot be treated as purely technical, and it must remain subject to constitutional principles of fairness, non-discrimination, and accountability.

Indirect Discrimination and Structural Inequality in Algorithmic Decision-Making

A significant concern arising from the use of artificial intelligence in governance is the possibility of indirect discrimination. Unlike direct discrimination, which is based on explicit classification, indirect discrimination may occur even when a system appears neutral in its design. Automated decision-making processes generally rely on statistical models and previously collected data, and such data is often shaped by existing social conditions. Because of this, the results generated by an algorithm may reflect the same patterns of inequality that already exist within society.[9]

Artificial intelligence systems do not make moral or legal judgments by themselves. They operate by recognising patterns in the information that is provided to them. When historical data contains unequal representation of different groups, the system may treat those patterns as normal and reproduce them in future decisions. This can create situations in which certain communities are placed at a disadvantage, even though there is no deliberate intention to discriminate. In the context of public administration, such outcomes raise serious constitutional concerns, since the guarantee of equality requires that State action must remain fair and non-arbitrary.

[9] Cathy O'Neil, Weapons of Math Destruction: How Big Data Increases Inequality and Threatens Democracy (Crown 2016).

Indirect discrimination may also arise through the use of proxy indicators. Even where a system does not directly consider sensitive factors such as caste, religion, or gender, it may rely on other variables that indirectly reveal similar information. Factors like place of residence, level of education, language, occupation, or economic status may correspond to social background. When such indicators are used in automated decision-making, individuals belonging to historically disadvantaged groups may be affected more severely than others, even though the system appears neutral on its face.

This problem becomes more serious in the Indian context, where social and economic differences have developed over a long period of time. Inequality relating to caste, gender, regional development, and access to education continues to influence the opportunities available to individuals. If artificial intelligence systems are trained on data that reflects these conditions, the outcomes may reproduce the same imbalance. For instance, a system designed to evaluate eligibility for employment, financial assistance, or welfare benefits may rely on past records that already show unequal participation of different communities. In such situations, the decision may appear objective while still producing unequal impact.

The constitutional guarantee of equality under Articles 14 and 15 is concerned not only with the form of State action but also with its effect. The Constitution does not permit the State to avoid responsibility by relying on procedures that produce unfair results. Even where there is no deliberate intention to discriminate, governmental action may still be questioned if its consequences are unreasonable or disproportionately harmful to certain groups. This concern becomes particularly important when decisions are taken through technological systems that are difficult to examine or challenge.

Another difficulty arises from the limited transparency of many automated processes. Individuals affected by algorithm-based decisions may not know what information was used or how the conclusion was reached. Without clear explanation, it becomes difficult to challenge an incorrect or biased outcome. When such systems are used in public administration, the absence of accountability may weaken the protection against arbitrary or unequal treatment that the Constitution seeks to provide.

For these reasons, the risk of indirect discrimination must be carefully considered whenever artificial intelligence is introduced in governmental functions. The use of technology cannot be treated as separate from constitutional obligations, and the principles of fairness, non-arbitrariness, and non-discrimination must continue to guide the exercise of State power even in the digital age.

Need for Safeguards in the Use of Artificial Intelligence in Governance

The growing use of artificial intelligence in public administration makes it necessary to establish safeguards that ensure technological development remains consistent with constitutional principles. Although automated systems may improve efficiency, accuracy, and administrative speed, their use in governmental functions cannot be allowed to weaken the guarantees of fairness, equality, and non-arbitrariness that lie at the core of the Constitution. When decisions affecting rights, benefits, or legal status are taken with the assistance of algorithm-based systems, the risk of error, bias, or lack of accountability becomes a matter of constitutional concern. International human rights discussions have recognised that automated decision-making may affect fundamental rights, particularly where such systems operate without sufficient transparency, human oversight, or effective remedies. These concerns indicate that technological efficiency alone cannot justify the use of artificial intelligence in governance unless adequate legal and institutional safeguards are in place.[10] Therefore, whenever artificial intelligence is employed by the State, its operation must remain subject to constitutional limitations, judicial review, and principles of equality.

One important safeguard is transparency in decision-making. Many algorithm-based systems function in a manner that is not easily understood by the individuals affected by them. When a person is denied a benefit, opportunity, or legal right on the basis of an automated decision, the reasons for that decision should be capable of being explained. Without such clarity, it becomes difficult for individuals to challenge an incorrect or unfair outcome. The requirement of transparency is closely connected with the constitutional principle that State action must not be arbitrary.

[10] U.N. Human Rights Council, The Right to Privacy in the Digital Age, U.N. Doc. A/HRC/48/31 (2021).

Another necessary safeguard is meaningful human supervision. Artificial intelligence may assist administrative authorities, but it should not completely replace human judgment in matters that affect rights and legal status. Human review makes it possible to consider special circumstances, correct technical errors, and prevent mechanical application of rules. If decisions are taken only through automated processes without proper oversight, the possibility of unfair treatment may increase.

Regular evaluation of automated systems is also required in order to detect bias or unequal impact. Before such technology is used in areas such as recruitment, welfare distribution, law enforcement, or financial assessment, authorities should examine whether the system produces different results for different groups. Periodic review is necessary because the effect of an algorithm may change over time as new data is introduced. Without continuous monitoring, a system that appears neutral at the beginning may later create unintended discrimination.

Accountability is another essential requirement when artificial intelligence is used in governance. Even when technology is developed by private organisations, responsibility for its use remains with public authorities. Citizens must have the ability to question decisions that affect them, and there must be a clear procedure for review or correction. If no authority can be held responsible for the outcome of an automated decision, the constitutional protection against arbitrary action may become ineffective.

In the Indian context, the need for safeguards becomes more significant because of existing social and economic inequality. Differences in access to education, digital resources, and financial opportunities may influence the data on which automated systems rely. Without proper regulation, the use of artificial intelligence may unintentionally strengthen these disadvantages instead of reducing them. For this reason, technological efficiency cannot be treated as more important than constitutional values.

The use of artificial intelligence in governance must therefore be accompanied by legal and institutional safeguards that ensure fairness, transparency, and accountability. The Constitution requires that every form of State action, whether human or automated, must respect the guarantee of equality. Proper regulation of artificial intelligence is not only a technical necessity but also a constitutional obligation.

Conclusion

The increasing use of artificial intelligence in governance has created new challenges for the protection of constitutional rights. While automated systems may improve efficiency and help authorities manage large amounts of information, their use cannot be separated from the principles laid down in the Constitution of India. Articles 14 and 15 require that every action of the State must be fair, reasonable, and free from discrimination. These requirements continue to apply even when decisions are taken with the help of technological systems.

This study has shown that artificial intelligence may produce unequal outcomes even without deliberate intention. Because automated decision-making depends on historical data, existing social inequalities may be repeated through algorithmic processes. In a society like India, where differences relating to caste, gender, economic status, and access to resources still exist, the risk of indirect discrimination becomes more serious. When such systems are used in areas like public employment, welfare distribution, or law enforcement, the possibility of unfair treatment cannot be ignored.

The constitutional guarantee of equality is concerned not only with the form of State action but also with its actual effect. The State cannot avoid responsibility by relying on automated methods that produce arbitrary or unjust results. For this reason, the use of artificial intelligence in governance must remain subject to constitutional limitations. Safeguards such as transparency, human supervision, regular review, and clear accountability are necessary to ensure that technological development does not weaken fundamental rights.

Artificial intelligence should therefore be treated as a tool that assists administration, not as a system that replaces constitutional responsibility. The progress of technology must be guided by the values of fairness, non-arbitrariness, and equality that form the foundation of the Indian Constitution. Only when these principles are respected can the use of artificial intelligence in governance remain consistent with the vision of justice and equality guaranteed to every individual.

References:

INDIA CONST. arts. 14, 15.

Ministry of Electronics and Information Technology, Government of India, IndiaAI Mission (2024), NITI Aayog, National Strategy for Artificial Intelligence (2018). doc20251012664501.pdf

INDIA CONST. art. 14.

E.P. Royappa v. State of Tamil Nadu, (1974) 4 SCC 3.

Maneka Gandhi v. Union of India, (1978) 1 SCC 248.

INDIA CONST. art. 15(1).

Jeffrey Dastin, Amazon scraps secret AI recruiting tool, Reuters (2018).Insight - Amazon scraps secret AI recruiting tool that showed bias against women | Reuters

Old Japanese maps on Google Earth unveil Burakumin secrets, Japan Today (2009).Old Japanese maps on Google Earth unveil 'burakumin' secrets - Japan Today

Cathy O'Neil, Weapons of Math Destruction: How Big Data Increases Inequality and Threatens Democracy (Crown 2016).

U.N. Human Rights Council, The Right to Privacy in the Digital Age, U.N. Doc. A/HRC/48/31 (2021).